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Ditch or switch? Colorado governments decide fate of Flock cameras

By Nicholas Fogleman

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Flock cameras record cars along South Quebec Street near C-470 on Thursday, Sept. 24, 2026. (Stephen Swofford, Denver Gazette)
(Stephen Swofford, Denver Gazette)

Flock cameras have become the focus of a nationwide debate over privacy, data and law enforcement tools as the technology has been rapidly deployed across Colorado.

As public outcry has grown over the use of the automatic license plate reading cameras, governments in Colorado have responded by canceling contracts, removing cameras and reviewing their own policies around the use of ALPR devices.

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Some police departments are switching to Axon, a legacy law enforcement technology company best known for its body cameras and Tasers.

Supporters of the technology argue it has become a vital tool for law enforcement to solve and prevent crime. Officials have argued that switching vendors addresses many of the public concerns raised about the technology.

Detractors have argued that the technology threatens the public's right to privacy, often highlighting examples of misuse within local police departments. They have argued that switching to a new company does not address fundamental concerns about the use of the technology.

Police departments often advocate for the technology as a means to conserve resources, find criminals and prevent crimes. **News releases frequently** highlight the advantage of the cameras in solving crimes that would have likely gone unsolved much longer if the cameras were not in use.

The debate over whether to use ALPRs and, if so, which vendor to choose has played out in municipal, county and state governments, where public comments, police testimony and elected officials' concerns about privacy and data collection have shaped the discussion.



Flock cameras record cars along South Quebec Street near C-470 on Thursday, Sept. 24, 2026. (Stephen Swofford, Denver Gazette)

ALPR in Colorado

The anti-ALPR organization DeFlock has mapped more than 142,000 ALPRs across the nation, including 2,691 in Colorado. The organization aggregates volunteer reports, public records and news coverage to document the locations of ALPR devices.

Over the past year, a number of local governments have canceled their Flock contracts, citing concerns about privacy, data practices and misuse.

Fort Collins, Steamboat Springs and Moffat County have all dropped their Flock contracts and ordered the removal of the cameras from public streets.

Others, including Denver, **Douglas County**, Longmont and Durango, have replaced Flock with Axon, a company with longstanding ties to local police departments.

A review of public testimony, officials' statements, public records and company terms and conditions suggests that the debate often centers on whether concerns about privacy, data retention and surveillance stem from the policies of individual companies or from the use of ALPR technology itself.

Courts have consistently ruled that the technology is legal, but many public officials still express hesitation about deploying ALPRs sold by any company.

Governments and ALPR

In Englewood, the City Council voted Sept. 8 to end its contract with Flock. A vote to approve a contract with Axon narrowly failed on a 3-3 tie.

"I have a problem with the government keeping track of everywhere we go and everywhere we are," Councilmember Rita Russell said, explaining her no vote. "I think whether we use Flock or Axon, it's no different. They both do the same thing."



A Flock camera is shown in Denver in this file photo. (Courtesy of Flock Safety)

Denver had a different result.

The City Council did not renew its Flock contract this year over reports that Denver's tracking data was on a national network available to immigration enforcement. According to Flock, information sharing is controlled by the customer and access by a federal agency must be explicitly granted.

In February, the Denver City Council narrowly approved a contract with Axon by a 7-6 vote following months of tension over use of ALPRs.

"Keeping Denver safe means giving our officers effective tools to combat crime while ensuring our rights are protected. This contract does both," Denver Mayor Mike Johnston said in a statement at the time.

Not every police department is canceling or switching.

In April, Commerce City approved a \$4.5 million contract with Flock for five years.

Commerce City Police Chief Darrel Guadnola told councilmembers that the technology has increased the recovery of stolen vehicles and firearms.

"We've seen great success," Guadnola said. "When Flock was relatively new we did get a hit on a stolen vehicle ... which was subsequently used in a robbery homicide. We were able to connect all the dots and close it that night. We had the manpower in the area solely because of the LPR."

During three years of use, Commerce City police made 36 stolen vehicle recoveries.

"It's been here for three years and those are successes for those 36 car owners," Councilmember José Guardiola said. "It's their livelihood."

what's the difference

In switching to Axon, public officials have pointed to differences in how both companies handle data retention, security and access.

Englewood Mayor Othoniel Sierra, who supported a contract with Axon, pointed to Flock's policy over data use.

"Enough has been said about how some of that information has been used by other jurisdictions and how we are unable to regulate exactly who has access to that information once it is captured," Sierra said. "Unfortunately, it just seems to be a flaw in the system."

Trevor Chandler, Flock's senior director of public affairs, acknowledged the tension and confusion surrounding the company's policy before the Commerce City Council in April.

"What we were hearing ... was actually more confusion about our terms and conditions rather than clarity," Chandler said.

According to Flock's public terms and conditions, the company allows customers to control a variety of settings to meet state and local laws and conform to department policies.

The company allows customers to choose who they share their data with and how long the data is retained. The company does not sell or own customer data and tracks each query into the system.

Any access to customer data by a federal agency must be explicitly granted by a local customer and must comply with applicable law. Customers can share data through national and state lookup networks or through one-to-one agreements.

Axon follows a similar structure.

According to Axon, customers can choose whom they share access to ALPR data with.

Similarly, Axon does not sell or own customers' ALPR data, allows agencies to set their own data retention timelines and tracks individual searches conducted by officers.

Axon does not have national or statewide lookup systems and solely operates on a one-to-one sharing relationship.

Chandler told the Commerce City Council the system was designed for each department to have the ability to configure its own settings to conform to local laws.

“We provide the departments the ability to make those decisions according to their state and local laws and regulations,” Chandler said in April. “Commerce City owns the data, Commerce City decides who it shares with and Commerce City has full control over whether or who they want to share with, if at all.”

Legal standards and misuse

ALPRs in Colorado are generally governed by laws that restrict data retention and information sharing for immigration-related purposes. Requirements such as timely audits, information sharing for other purposes, general uses and access controls are typically set up at local government’s discretion.

A bill introduced this year, but ultimately unsuccessful, would have significantly expanded restrictions on government access to historical location information and require deletion after four days unless a warrant or court order extends the period.

Access to the data generally would have required a warrant or another listed exception and the bill mandated 90-day audits of data systems.

Similar bills have been passed in other states. In Washington, ALPRs can only be used for limited purposes and cannot be placed around sensitive locations including schools, places of worship and health care facilities. Virginia restricts data sharing primarily to statewide law enforcement agencies and requires a 21 day retention period unless needed for an ongoing investigation.

There is currently no comprehensive federal law that regulates ALPRs nationwide.

On Wednesday, during a U.S. Senate hearing chaired by Sen. Josh Hawley, Alasdair Whitney of the Institute for Justice pointed to the lack of legal safeguards governing the use of ALPRs.

“Where governments have not written the rules, a vendor or law enforcement agency has,” Whitney wrote in his testimony.

During the hearing, witnesses described examples of misuse of the technology that often arose from police mismanagement and decision-making, rather than ALPR company policy.

One woman told senators she was arrested and spent 13 days in jail because of a camera's misidentification of her vehicle in a Florida hit-and-run case, despite showing that her vehicle had no damage and providing proof of where she had been at the time.

Whitney described alleged misuse in California, where law enforcement reportedly ran searches on behalf of federal agencies in violation of state law, and another case in Virginia where a police department's 230,000 searches over a two-year period were never audited.

The Institute for Justice has logged 244 ALPR abuses, including five in Colorado between 2020 and 2026. One incident in 2020 involved a family, including two minors, being handcuffed and held at gunpoint due to a misidentification.

Other incidents in Colorado involved drivers who were repeatedly pulled over after their license plate was incorrectly placed on a hot list and another person who was blamed for a series of thefts. Nationally, cases have involved stalking, assisting criminals and other personal uses.

"Flock acknowledged that it conducts very little oversight of client searches and instead relies on its clients to police themselves," Hawley said during the Senate hearing.

What do police say?

Police have frequently touted the usefulness of the technology in deterring and solving crimes. Numerous outlets across the state have reported that ALPRs helped solve cases, including a \$12 million jewelry heist in Cherry Creek in 2025 and a recent fatal hit-and-run in Aurora.

Englewood Police Chief David Jackson cited reductions in vehicle theft and an increase in public safety since the technology's deployment.

"I think some of that has to do with letting the criminals know, do not come here, we are going to arrest you," Jackson said.

In response to privacy concerns, Jackson said that before the technology's deployment, police could still misidentify suspects, leading to stops of law-abiding citizens while searching for criminals.

"Prior to having ALPR technology, when somebody said that there was a green Jeep used in a burglary, officers pulled over green Jeeps," Jackson said. "What I think the technology has done has made it easier for us to delineate which green Jeep."

Councilmember Tena Prange, who supported the Axon contract, argued the benefits of the technology outweigh the negatives.

"I think if we're talking about nationwide, the number of hits that come in on ALPRs against the statistics of misuse, I would believe that it would not be statistically significant," Prange said.

Deborah Grigsby contributed to this report.

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Marjuana company recalls products

BY CHRISTOPHER OSHER
The Denver Gazette

Editor's Note: This article was produced in partnership with ProPublica's Local Reporting Network.

A Colorado manufacturer of a popular brand of marijuana vapes warned dispensaries last week that it is recalling products due to contamination by methylene chloride, a chemical the Environmental Protection Agency has sought to ban for most uses because it can cause cancer.

The recall comes amid a protracted delay in state implementation of expanded testing procedures that would have detected methylene chloride and other solvents that pose health risks. The manufacturer, StazyCo, voluntarily flagged 49 of its products, some of which first went up on dispensary shelves more than a year and a half ago. The recalled items include vapes that go by the brand name Manni Wow-ie and Grape Gorilla. The recall notice said a



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Trump meets with Xi



THE ASSOCIATED PRESS

Story A21
President Donald Trump speaks to reporters during a tour of the South Lawn of the White House with Chinese President Xi Jinping on Thursday in Washington.

Councilmembers push for trash privatization

BY NICOLE C. BRAMBILLA
The Denver Gazette

Denver's trash collection system is not paying for itself, prompting two councilmembers to call for privatizing the service as transportation officials warned residents could face higher rates. The financial health of the city's trash program emerged as a point of contention during Denver's Department of Transportation and Infrastructure budget hearings on Tuesday and Thursday as part of City Council's review of agencies' proposed 2021 spending plans.

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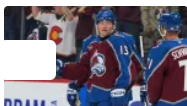
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